

		First, part of that delay is attributable to Defendant’s refusal to stipulate to allowing Plaintiffs to amend. Plaintiffs contend that on April 13, 2026, they “requested that Defendants stipulate to the filing of a proposed first amended complaint to add the above-referenced causes of action and punitive damages.” (Darling Decl. ¶ 22.) However, Defendants declined the request. (<i>Id.</i>) Further, “[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564.) Within the opposition brief, Defendant argues, essentially, that amendment will require it to expend additional time, effort and resources, responding to the new claims. (See, e.g., Oppn at 2:23-27); however, it is “unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend.” (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557; <i>see also Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th 142, 168, citing the same.) “Absent some kind of disadvantage to [Defendant’s] defense linked to the passage of time – such as faded memories or lost evidence – delay in and of itself was not a valid reason to deny amendment.” (<i>Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th 142, 168.) Similarly, the Court in <i>Landis</i> noted that it was “unable to find any case in which denial was upheld where the sole basis on which the court relied was lack of diligence at a stage in the proceeding where pretrial or trial had not been set.” (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557.) As Defendant has not submitted any evidence that it will be prejudiced in such a manner as to justify denying the motion, the motion for leave to amend is granted. Plaintiffs’ requests for <u>judicial notice</u> are granted pursuant to Evidence Code §452(d). Plaintiffs <i>shall separately file and serve the proposed First Amended Complaint within 10 days.</i> Plaintiffs to give notice.
13.	30-2017-00960046 Wosoughkia vs. M3Live Bar & Grill, Inc	1. Motion for New Trial ***No Tentative Ruling.***
15.	30-2024-01422667 Nasr vs. Ride Aventon, Inc.	1. Motion for Summary Judgment and/or Adjudication Defendant Ride Aventon, Inc. seeks a motion for summary judgment as to Plaintiff’s Complaint (7 causes of action pled therein), or alternatively, summary adjudication as to <i>16 issues</i>. Based on applicable law, and a set forth herein, said Motion is DENIED. Notably, pursuant to CCP§437c(f)(1), “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative